THE STATE

Versus

KHULISO TSHUMA

HIGH COURT OF ZIMBABWE
MUTEVEDZI J
BULAWAYO, 15 July 2025

C. Mabhena, for the state
M. Ncube, for the accused

Criminal Trial- sentencing judgment

MUTEVEDZI J: Some of the most powerful demons in the Bible are Satan (aka Lucifer), Legion, and Azazel. I am not sure which one of those evil spirits had possessed Khuliso Tshuma, (the offender), on the day that he murdered Priscilla Tshuma (the deceased) who was his niece. Possibly, he was possessed by a combination of two or all of them because the brutality and savagery of the attack betrayed a completely unhinged mind. His behaviour demonstrated that the saying that lightning does not strike twice is a myth which must be consigned to folklore because the offender did not only kill Priscilla. A few years earlier he had raped her and had been sentenced to 12 years imprisonment. He had then benefited from a general amnesty which was granted to prisoners in certain categories of offences and those who had served specified durations of their sentences.

[1] We stated in the main judgment that at the time that the offender was doing time at Khami Maximum Prison, Priscilla chose to move on with her life. Ironically, she joined the Zimbabwe Prisons and Correctional Services (ZPCS), the institution charged with rehabilitating her rogue uncle. She was however based in Harare and possibly had no interaction whatsoever with him. Needless to state though, despite its reputation as one of the best correctional institutions in the region and beyond, the efforts of the ZPCS must

have completely failed this time around. The offender had learnt nothing about being a good citizen by the time he was released from incarceration.

[2] Upon his release, Khuliso found his way back to his rural home where he had perpetrated the heinous act of sexually violating Priscilla. Shortly after and most probably unaware that his rapist uncle had been pardoned and oblivious of the danger that awaited her, Priscilla also decided to go home for the Christmas vacation. She arrived at her grandparents' homestead in rural Plumtree on 23 December 2024. Unfortunately, on Christmas eve, the offender shamelessly began showing signs that his lust for his niece had not abated an inch. When the family was gathered that evening, he tried to forcibly sit next to Priscilla but she openly rebuffed those efforts. He persisted and as already known pounced on the hapless woman the next morning when she was sweeping the house veranda. He stabbed her several times and killed her instantly. He used a notorious type of knife called the okapi. Soon after stabbing her to death, he nonchalantly walked out of the yard and disappeared. He was only arrested later.

[3] At his trial, the offender hardly denied anything. We threw out his lame defence and convicted him of the murder without hesitation. It is from the above circumstances that the court is required to assess the appropriate sentence for the offender. As is settled in this jurisdiction, the court must as a rule, first determine whether or not the murder was committed in aggravating circumstances. The factors which aggravate a murder are specified under section 47(2) of the CODE which provides that:

> **"47 Murder**
>
> (2) In determining an appropriate sentence to be imposed upon a person convicted of murder, and without limitation on any other factors or circumstances which a court may take into account, a court shall regard it as an aggravating circumstance if—
> (*a*) the murder was committed by the accused in the course of, or in connection with, or as the result of, the commission of any one or more of the following crimes, or of any act constituting an essential element of any such crime (whether or not the accused was also charged with or convicted of such crime)—
> (i) an act of insurgency, banditry, sabotage or terrorism; or
> (ii) the rape or other sexual assault of the victim; or
> (iii) kidnapping or illegal detention, robbery, hijacking, piracy or escaping from lawful custody; or
> (iv) unlawful entry into a dwelling house, or malicious damage to property if the property in question was a dwelling house and the damage was effected by the use of fire or explosives; or

(*b*) the murder was one of two or more murders committed by the accused during the same episode, or was one of a series of two or more murders committed by the accused over any period of time; or
(*c*) the murder was preceded or accompanied by physical torture or mutilation inflicted by the accused on the victim; or
(*d*) the victim was murdered in a public place or in an aircraft, public passenger transport vehicle or vessel, railway car or other public conveyance by the use of means (such as fire, explosives or the indiscriminate firing of a weapon) that caused or involved a substantial risk of serious injury to by-standers.

(3) A court may also, in the absence of other circumstances of a mitigating nature, or together with other circumstances of an aggravating nature, regard as an aggravating circumstance the fact that—
(a) the murder was premeditated; or
(*b*) the murder victim was a police officer or prison officer, a minor, or was pregnant, or was of or over the age of seventy years, or was physically disabled."

[4] That determination of the existence or otherwise of aggravating circumstances enables the Court to decide the appropriate course to take. Once a court concludes that the murder was aggravated, the court's sentencing discretion is significantly constricted. Only two options will remain available. It can sentence the offender either to imprisonment for life or to a determinate term of not less than 20 years imprisonment. If it was not, the court's discretion is in a way restored. It will be permissible to sentence the offender to imprisonment of any duration as the court may deem fit. This is founded in section 47(4) which provides as follows:

(4) A person convicted of murder shall be liable-

(a) subject to sections 337 and 338 of the Criminal Procedure and Evidence Act [*Chapter 9:07*], to death, to imprisonment for life or imprisonment for any definite period of not less than twenty years, if the crime was committed in aggravating circumstances as provided in subsection (2) or (3); or

(b) in any other case to imprisonment for any definite period" (my underlining for emphasis)

[5] In this case, counsel for prosecution argued that the crime was aggravated by the fact that the offender committed a grave offence which was achieved by the use of a weapon. She directed us to the Criminal Procedure (Sentencing Guidelines) Regulations, 2023 ("Sentencing Guidelines"). Further, she submitted that a life was needlessly lost at a tender age of 23 because of the offender's savage and cruel conduct. We pause here however, to comment that whilst that assertion is true, the law appears to actually treat the lives of those who are in the afternoon of their stay on earth and minors as more precious than those of younger people of above 18 and below 70 years. We note so, because section 47 (3) (b) of

the CODE provides that it is an aggravating factor if an offender kills a minor or a person above the age of 70 years. By parity of reasoning, it follows that the age of a murder victim where he/she is between the ages of 18 and 70 years cannot on its own aggravate the murder.

[6] Further, the prosecutor submitted that the offender showed no remorse throughout the trial. She said the offender demonstrated that he is an individual who is averse to rehabilitation as borne testimony to by his previous and fresh conviction for rape. She then referred us to the Victim Impact Statement authored by the **offender's mother and deceased's grandmother.** That statement spoke to the torture that the deceased's family went through because of her death. The **offender's mother** prayed for a life sentence because in her own words "she does not wish to see him again."

[7] On his part and to his credit, counsel for the offender admitted that the offence was committed with gratuitous violence and/or cruelty as shown by the number of stab wounds inflicted on the deceased. He further said the offender stabbed a defenceless and vulnerable woman with a dangerous weapon. However, he urged the Court to impose a sentence of 20 years imprisonment.

[8] We note, however, that whilst both counsel's submissions remained valid and of assistance to the court, they skirted around the real issues. The aggravating circumstances that are referred to in subsections (2) and (3) of section 47 of the CODE are not the general issues which increase an offender's moral blameworthiness but are the real bad stuff that leave an offender on the edge of the precipice. Before the abolition of the death penalty, they were the difference between life and death. Literally. Luckily for everyone, those factors are largely legislated. All that a prosecutor needs to do is turn to section 47 (2) and (3), restated above, to pick them out. The sentencing guidelines have extended the list of such circumstances under the crime of murder. In addition, the High Court exercising the powers reposed in it by subsection (5) of the same provision has categorised several other aspects to be aggravating circumstances.

[9] In the instant case, the court cannot turn a blind eye to the fact that the offender subjected the same victim to untold brutality twice in the space of a few years. The murder appeared to have been an act of either uncontrolled savagery on unmitigated revenge. Either way, it

puts the offender in no different space than a person who rapes his victim and murders her. This court has always found such action particularly reprehensible. It is irrefutable that the murder was intrinsically connected to the rape. The night before the murder, the offender had attempted to get into the deceased's space by force. On the morning of the murder, he had again tried in vain to lure the deceased to accompany him to fetch water. Only God knows what he intended to achieve. Those issues in our view, constitute aggravating circumstances.

[10] As already said, it is common cause that the murder was committed with the use of a notoriously lethal weapon- the okapi knife. The offender could not explain during trial or at any other time, why he was in possession of the knife. We would not be wrong to then infer that he had always intended to murder the deceased with it. In that case, he therefore premeditated the commission of the murder. Where it is combined with other aggravating factors, premeditation of a murder is an aggravating circumstance. That he premeditated and planned the commission of the murder was put beyond doubt by the offender himself in his confirmed, warned and cautioned statement, where he stated that he could not shake off the urge to kill the deceased. He said:

> "I admit the charge levelled against me. I felt an inclination not to leave her alive."

Clearly, it was always his mission to kill the deceased.

[11] We also agree with the prosecutor regarding the offender's previous conviction. A certificate to that end was produced at the end of the trial. The offender admitted it. It proves not only that he is an incorrigible criminal but an ultraviolent one. The fact that the previous conviction is not listed as an aggravating factor in section 47 of the CODE, understandably so because it is not every day that a person commits two or more murders in his lifetime, does not make it any less. It is very aggravating. It is particularly so, when the previous conviction relates to an equally violent crime. In my view, it must therefore be regarded as an aggravating circumstance where an offender commits a murder on the same victim he previously subjected to violence. The above approach has previously not been visible in our jurisdiction but was adopted in the South African case of *S v Felix & Anor* 1980 (4) SA 604 (A) at p. 612.

[12] Further, we note that the murder was committed with gratuitous violence. It adds to the list of aggravating circumstances against the offender. He stabbed the deceased numerous times. We do not think all those stabs were intended to kill the deceased but to satisfy the offender's sadistic ego. We, therefore, entertain no doubt that the murder was committed in aggravating circumstances. In fact, it was committed in a multiplicity of such factors.

[13] We stated earlier, that once a court finds the existence of one or more aggravating factors, it can only have two choices- life imprisonment or a determinate term of not less than 20 years imprisonment.

[14] What is also worrisome is the offender's lack of remorse and contrition. Clearly, he did not reform from his past conduct. Our view is therefore that the offender must be visited with the severest punishment available. The term of 20 years imprisonment suggested by counsel for the offender will not only be a slap on the wrist for the offender but will also be a recipe for destroying the public's confidence in the efficacy of the criminal justice system's capacity to protect citizens. It was stated in *S v Chaira* HC99-24 that:

> "The proposed sentence of 20 years' imprisonment being the minimum sentence, does not meet the justice of this case in light of the highly aggravatory factors discussed above. The accused's actions are deplorable and reveal a profound lack of empathy and morality. Over and above murdering a very close relative in a very gruesome manner…"

The above sentiments apply to this case in equal measure. The offender is someone who does not value human life. He must not in turn expect any sympathetic treatment from the courts. Our displeasure at his penchant for violent crime and total disregard for human life can only be illustrated through the imposition of the highest punishment available. Before the death penalty was abolished, this is an offence that would have easily attracted capital punishment. The Courts will not and must not be found condoning such behaviour. As was stated in *S v Gwashure* HH 542-24:

> "The loss of human life through violence must always be frowned upon. The courts must in that regard strive to pass sentences which send the correct message to would be offenders that appropriately severe punishments will be meted out to anyone who takes the life of another."

[15] **In the circumstances, we are left with no choice but to direct that:**

The offender be and is hereby sentenced to life imprisonment.

MUTEVEDZI J…….

National Prosecuting Authority, state's legal practitioners
T. J Mabhikwa and Partners, accused's legal practitioners